

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Transcript Order and Record Designation

Court of Appeals No. SYN-CA4-26-CV-4105

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

Filed by appellant January 23, 2026

Blue Ember reports that every proceeding material to this appeal has already been transcribed and filed in Western District of North Carolina Case No. SYN-WDNC-24-CV-0520. Those materials include six trial days—October 6 through October 10 and October 14, 2025—the on-record presentations of Granite Heron’s two Rule 50(a) motions, the charge conference and verdict proceedings, and the December 8 posttrial-motion hearing. No additional transcript is ordered, and no unreported proceeding is identified as necessary for review.

Counsel have conferred with Eli Mercer for Granite Heron. Appellee does not identify a missing reported session at this time, while reserving the right to move for correction if the transmitted record proves incomplete. The parties understand that this certification concerns the existence of filed transcripts, not the truth of any testimony or the legal effect of counsel’s oral statements.

Blue Ember asks the district clerk to transmit the certified electronic transcripts with their original filing dates and docket associations intact. Audio recordings, reporter notes, and demonstratives not admitted or filed below are not designated. This submission creates no new evidence and requests no supplementation beyond materials already before Judge Miriam D. Carver.

Designated district materials

The record should include the complaint and answer; the governing logistics and quality agreements; the validation-lot purchase and custody documents; discovery excerpts admitted or used in deciding the posttrial motion; the parties' expert reports; the final pretrial orders; all admitted trial exhibits; and the complete reported trial proceedings. Blue Ember also designates the proposed and delivered instructions, objections, Rule 50(a) submissions, special verdict, and original judgment.

For the posttrial phase, the designation includes Granite Heron's November 10 combined Rule 50(b) and Rule 59 motion, Blue Ember's opposition, Granite Heron's reply, the December 8 hearing transcript, and the December 15 order and amended judgment. The January 12 notice of appeal and January 13 certified docket and record certificate should follow those merits materials. This sequence permits review of what the district court possessed when it ruled.

The requested contents preserve the critical distinction between causation and mitigation. The two pre-verdict motions must be transmitted in the form actually made, including their statements that mitigation remained with the jury. The postverdict motion must likewise show when Granite Heron first sought a fixed \$1,500,000 mitigation reduction as JMOL. Blue Ember designates no hypothetical, revised, or reconstructed motion and asks the clerk not to substitute a summary for the filed text.

Completion request and certification

Blue Ember requests prompt certification once the designated electronic items have been checked against the district docket. If an exhibit cannot be reproduced, the district clerk should identify it by title, filing date, and status so the parties may seek a focused remedy. Duplicate convenience copies need not be transmitted when the certified item is already present. Sealed status, if any, must be preserved rather than changed for appellate convenience.

Maya Holt certifies after reasonable review that no additional transcript must be purchased or prepared for the issues described in the January 23 docketing statement. She also certifies that this designation does not include settlement discussions, privileged communications, or material never submitted to the district court. Counsel will cooperate in correcting an accidental omission but will oppose any attempt to add evidence created after judgment.

The appellate filing system served Eli Mercer and Tara Webb for Granite Heron on January 23, 2026. A copy is available to the district clerk through the linked electronic docket. Holt Bell PLLC submits the document for Blue Ember through Maya Holt, with Jonas Bell also appearing. The requested next step is a record-completion notice followed by a court-set briefing schedule; this filing itself establishes no merits deadline and asks for no adjudication of the preservation dispute.